

COMMITTEE ON HEALTH & HUMAN SERVICES
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1174
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-455, Arizona Revised Statutes, is amended to
3 read:

4 8-455. Centralized intake hotline; purposes; report of
5 possible crime; DCS report; standardized hotline
6 assessment tools; access to information; public
7 awareness; definitions

8 A. The department shall operate and maintain a centralized intake
9 hotline to protect children by receiving at all times communications
10 concerning suspected abuse or neglect. If a person communicates suspected
11 abuse or neglect to a department employee other than through the hotline,
12 the employee shall refer the person or communication to the hotline.

13 B. The hotline is the first step in the safety assessment and
14 investigation process and must be operated to:

15 1. Record communications made concerning suspected abuse or
16 neglect.

17 2. Immediately take steps necessary to identify and locate prior
18 communications and DCS reports related to the current communication using
19 the department's data system and the central registry system of this
20 state.

21 3. Quickly and efficiently provide information to a law enforcement
22 agency or prepare a DCS report as required by this section.

23 4. Determine the proper initial priority level of investigation
24 based on the report screening assessment and direct the DCS report to the
25 appropriate part of the department based on this determination.

26 5. QUICKLY AND EFFICIENTLY SHOW IN A SINGLE REPORT THE ENTIRE
27 HISTORY OF A CHILD AND THAT CHILD'S SIBLINGS WHO HAVE BEEN THE SUBJECT OF
28 PRIOR HOTLINE CALLS OR DEPARTMENT INVESTIGATIONS. THE HOTLINE WORKER

1 SHALL REVIEW THE NARRATIVE OF EVERY CALL RECEIVED FOR THAT CHILD FROM THE
2 PREVIOUS NINETY DAYS.

3 C. If a communication provides a reason to believe that a criminal
4 offense has been committed and the communication does not meet the
5 criteria for a DCS report, the hotline worker shall immediately provide
6 the information to the appropriate law enforcement agency.

7 D. A hotline worker shall prepare a DCS report if the identity or
8 current location of the child victim, the child's family or the person
9 suspected of abuse or neglect is known or can be reasonably ascertained
10 and all of the following are alleged:

11 1. The suspected conduct would constitute abuse or neglect. If the
12 suspected conduct involves neglect as defined in section 8-201, paragraph
13 25, subdivision (c) and a health professional determines that the newborn
14 infant was exposed prenatally to cannabis as defined in section 13-3401,
15 the department shall verify whether the mother is a qualifying patient as
16 defined in section 36-2801 and possesses a valid registry identification
17 card issued pursuant to section 36-2804.03.

18 2. The suspected victim of the conduct is under eighteen years of
19 age.

20 3. The suspected victim of the conduct is a resident of or present
21 in this state.

22 4. The person suspected of committing the abuse or neglect is the
23 parent, guardian or custodian of the victim or an adult member of the
24 victim's household.

25 E. A hotline worker shall prepare a DCS report if the identity of
26 the person who is suspected of abuse is an employee of a child welfare
27 agency and both of the following apply:

28 1. The child victim is placed with the CHILD WELFARE agency.

29 2. The CHILD WELFARE agency is licensed by and contracted with the
30 department.

31 F. A HOTLINE WORKER SHALL REVIEW CALLS TO THE HOTLINE THAT WERE
32 RECEIVED IN THE PREVIOUS NINETY DAYS AND THAT DID NOT MEET THE CRITERIA
33 FOR A DCS REPORT AND MAY USE THE INFORMATION THAT IS CONTAINED IN PRIOR
34 HOTLINE CALLS WHEN MAKING A DETERMINATION IF AN ALLEGATION MEETS THE
35 CRITERIA FOR A DCS REPORT.

36 ~~F.~~ G. Except for criminal conduct allegations, the department is
37 not required to prepare a DCS report if all of the following apply:

38 1. The suspected conduct occurred more than three years before the
39 communication to the hotline.

40 2. There is no information or indication that a child is currently
41 being abused or neglected.

42 ~~G.~~ H. Investigations of DCS reports shall be conducted as provided
43 in section 8-456 except for investigations containing allegations of
44 criminal conduct, which shall be conducted as provided in section 8-471.

45 ~~H.~~ I. The department is not required to prepare a DCS report
46 concerning alleged abuse or neglect if the alleged act or acts occurred in

1 a foreign country and the child is in the custody of the federal
2 government.

3 [J. IF THE DEPARTMENT RECEIVES FOUR OR MORE REPORTS OF ABUSE OR
4 NEGLECT IN LESS THAN TWELVE MONTHS REGARDING THE SAME CAREGIVER, THE
5 OFFICE THAT RECEIVES THE REPORT FOR INVESTIGATION SHALL ASSIGN THE
6 INVESTIGATION TO A CHILD SAFETY SPECIALIST WHO HAS AT LEAST TWO YEARS'
7 EXPERIENCE OR, IF AVAILABLE, A CHILD SAFETY SPECIALIST WHO HAS ADVANCED
8 FORENSIC TRAINING.

9 K. IF THE HOTLINE RECEIVES A CALL THAT ALLEGES THE ABUSE OR NEGLECT
10 OF A CHILD WHO IS THE SUBJECT OF A DEPENDENCY ACTION PURSUANT TO ARTICLE 8
11 OF THIS CHAPTER, THE DEPARTMENT SHALL DISCLOSE THOSE CALLS TO THE COURT
12 THAT HAS JURISDICTION OVER THE CHILD'S DEPENDENCY ACTION.]

13 ~~+~~ [J.] [L.] The department shall develop and train hotline
14 workers to use standardized hotline assessment tools to determine:

15 1. Whether the suspected conduct constitutes abuse or neglect and
16 the severity of the suspected abuse or neglect.

17 2. Whether the suspected abuse or neglect involves criminal
18 conduct, even if the communication does not result in the preparation of a
19 DCS report.

20 3. The appropriate investigative track for referral based on the
21 risk to the child's safety.

22 ~~+~~ [K.] [M.] A DCS report must include, if available, all of the
23 following:

24 1. The name, address or contact information for the person making
25 the communication.

26 2. The name, address and other location or contact information for
27 the parent, guardian or custodian of the child or other adult member of
28 the child's household who is suspected of committing the abuse or neglect.

29 3. The name, address and other location or contact information of
30 an employee of a child welfare agency who is suspected of committing abuse
31 if both of the following apply:

32 (a) The child victim is placed with the CHILD WELFARE agency.

33 (b) The CHILD WELFARE agency is licensed by and contracted with the
34 department.

35 4. The name, address and other location or contact information for
36 the child.

37 5. The nature and extent of the indications of the child's abuse or
38 neglect, including any indication of physical injury.

39 6. Any information regarding possible prior abuse or neglect,
40 including reference to any communication or DCS report involving the
41 child, the child's siblings or the person suspected of committing the
42 abuse or neglect.

43 ~~+~~ [I.] [N.] Information gathered through the hotline must be
44 made available to an employee of the department in order to perform the
45 employee's duties. The office of child welfare investigations and the
46 inspections bureau must have immediate access to all records of the
47 hotline.

1 ~~T.~~ [M.] [Q.] A representative of the:
2 1. Office of child welfare investigations must be embedded in the
3 hotline to carry out the purposes of section 8-471.
4 2. Inspections bureau must be embedded in the hotline to carry out
5 the purposes of section 8-458.
6 ~~M.~~ [N.] [P.] The department shall publicize the availability and
7 the purposes of the centralized intake hotline.
8 ~~N.~~ [O.] [Q.] For the purposes of this section:
9 1. "Centralized intake hotline" [OR "HOTLINE"] means the system
10 developed pursuant to this section regardless of the communication methods
11 or technologies used to implement the system.
12 2. "Criminal offense" means an allegation of conduct against a
13 child by a person other than a parent, guardian or custodian of the child
14 victim or another adult member of the child's household that, if true,
15 would constitute a felony offense.
16 Sec. 2. Effective date
17 Section 8-455, Arizona Revised Statutes, as amended by this act, is
18 effective from and after December 31, 2026.

19 Enroll and engross to conform
20 Amend title to conform
 And, as so amended, it do pass

SELINA BLISS
CHAIRMAN

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